

257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Even if the caption in Counsel Rosenberg’s declaration are deemed to be “oppositions” to two of the motions, which this Court does not find, they are still insufficient. It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; see also *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to raise facts, arguments, and failing to address the legal authorities in Defendants’ Motions, the Court finds that Plaintiff concedes all the contentions and arguments in the moving papers.

Applied here, the Court finds that failure to timely oppose the three motions, or to address any arguments raised by them in Rosenberg’s declaration, is a deemed to be her consent to the granting of three motions.

After reviewing the moving papers and applying the foregoing authorities, the Court finds good cause to grant Defendants’ motions to seal Plaintiff’s medical records from Sutter Roseville Medical Center.

Ruling

1. All three motions to seal are **granted**. The Court does not rule on the motion for summary judgment.
2. Defendant’s counsel is ordered to prepare and e-file a proposed order conforming to the tentative ruling, reviewed by Plaintiff’s counsel, no later than ten (10) days from the date of this hearing, attaching a copy of the tentative ruling.
3. The hearing on the motion for summary judgment / motion for summary adjudication is continued to July 22, 2026 at 9:00 a.m. in Dept. 16. As the motion is fully briefed, no further briefing will be accepted by the Court. Counsel are ordered to appear via Zoom or in person.

12. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

See Line 11, above.

13. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
*HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: SKINSPIRIT ESSENTIAL, LLC,
TENTATIVE RULING:

See Line 11, above.

14. 9:00 AM CASE NUMBER: C23-01698
CASE NAME: ZHI HUANG VS. HUTCHINSON MOTORS, INC.
*HEARING ON MOTION IN RE: TO APPROVE PAGA SETTLEMENT
FILED BY: HUANG, ZHI H
TENTATIVE RULING:

Summary

Plaintiff Zhi Huan' ("Plaintiff") Motion for Approval of the PAGA Settlement is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.** This settlement is for the PAGA claim for civil penalties and is not a class settlement and does not release the individual wage claims of affected employees other than Plaintiff.

Background

Plaintiff filed this Motion for Approval PAGA Settlement. Plaintiff exhausted all administrative remedies required to bring the PAGA claims asserted in this action and is authorized to act as a private attorney general with respect to the PAGA claims being released under the terms of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Settlement Agreement"). The California Labor Workforce Development Agency ("LWDA") was provided with notice of the settlement and the motion for approval of the settlement via its online process and no objection has been received to the settlement or the motion from the LWDA.

Plaintiff Zhi H. Huang ("Plaintiff") seeks approval of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Agreement")¹, which if approved, would provide valuable monetary relief for approximately 55 "Aggrieved Employees," defined as all individuals who are or previously were employed by Defendant Hutchinson Motors, Inc. ("Defendant") in California at any time between May 3, 2022 to May 3, 2023 ("PAGA Period"). Agreement at §§ I(B); I(S); III(A)(3).

This is only a settlement of the PAGA claim for civil penalties and is **not** a class settlement and **does not** release the individual wage claims, if any, of the affected employees other than Plaintiff herself. Cal. Lab. Code § 2699(g)(1); *Iskanian v. CLS Transportation* (2014); 59 Cal. 4th 348, 381 ZB, N.A. v. *Superior Court*, (2019) 8 Cal. 5th 175, 182 (unpaid wages are not recoverable under PAGA).

The terms of this settlement agreement are as follows:

1. The PAGA Settlement provides for a Gross Settlement Amount in the total sum of \$100,000.00, which includes: i) the Net Settlement Amount; ii) Plaintiff's Counsel Award in the amount of \$35,826.28, comprised of attorneys' fees in the amount of \$33,333.33 and reimbursed litigation expenses in the amount of \$2,492.95; and iii) Settlement Administration